

BEFORE THE BOARD OF PSYCHOLOGY EXAMINERS
OF THE STATE OF IOWA

IN THE MATTER OF:	)	CASE NO. 92-5
	)	DIA NO. 96DPHPS002
TODD HINES,	)	
	)	FINDINGS OF FACT,
RESPONDENT	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On November 20, 1996, the Administrator of the Iowa Board of Psychology Examiners (Board), acting on behalf of the Board, issued a Statement of Charges and Notice of Hearing to Todd Hines (Respondent). The Statement of Charges alleged that the Respondent had failed to comply with the terms of an informal settlement, in violation of Iowa Code section 272C.3.

The hearing was held on January 31, 1997 at 11:00 a.m. at the Hotel Fort Des Moines, Room 318, 1000 Walnut Street, Des Moines, Iowa. The following members of the Board were present for the hearing: Robert Jones, Ph.D, Chairperson; Dan Rogers, Ph.D.; Scott Shafer, Ph.D.; and Connie Schmett, Public Member. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, presided. Jean Davis, Assistant Attorney General, appeared for the State. The Respondent did not appear, nor was he represented by counsel. The hearing was tape recorded and was open to the public, pursuant to Iowa Code section 272C.6(1) and 645 IAC 240.207.

After hearing the testimony and examining the exhibits, the Board convened in closed executive session, pursuant to Iowa Code section 21.5(1)(f)(1995), to deliberate. A final motion was taken in open session, and the administrative law judge was directed to prepare the Board's decision, in conformance with their deliberations.

THE RECORD

The record includes the Statement of Charges and Notice of Hearing, Order for Continuance, Order Rescheduling Hearing, the testimony of the witness, and the following exhibits:

State Exhibit G:	Statement of Charges and Notice of Hearing dated 11/20/96 and Certified Mailing Verification
State Exhibit H:	Statement of Charges and Notice of Hearing dated 10/19/92
State Exhibit I:	Informal Settlement Agreement dated 1/31/96

State Exhibit J: Board Correspondence Implementing Informal Settlement Agreement

State Exhibit K: Board Investigative Records

State Exhibit L: Letter dated 5/15/96 (Respondent to Board)

FINDINGS OF FACT

1. On April 19, 1976, the Respondent was issued license number 53 to practice psychology in the state of Iowa. The Respondent's license lapsed on June 30, 1996. (Testimony of Sharon Cook; State Exhibit H)

2. On October 19, 1992, the Board issued a Notice of Hearing and Statement of Charges to the Respondent, which charged him with violating board statutes and rules when he: 1) entered into a personal and sexual relationship with a patient during his treatment of her; 2) actively interfered with her therapy and engaged in conduct detrimental to her diagnosed condition after cessation of the formal therapist/patient relationship; and 3) neglected to maintain adequate and pertinent records. (Testimony of Sharon Cook; State Exhibit H)

3. The Respondent and the Board entered into an Informal Settlement of the Statement of Charges, which was approved by the Board and became its Final Order on January 31, 1996. Pursuant to the terms of the Informal Settlement, the Respondent's license to practice psychology was suspended for a period of six (6) months, with all but sixty (60) days of the suspension stayed. Upon the completion of the sixty day suspension, the Respondent's license was placed on probation for a period of one (1) year, subject to terms and conditions, which included the following:

a) The Respondent's practice was to be monitored by a supervisor approved by the Board. The Respondent was required to meet with the supervisor, a licensed psychologist, on a weekly basis for the first three months to discuss all current female clients. After the first three months, the Board and the supervisor would determine the frequency of the meetings. The supervisor was required to make a monthly report to the Board.

b) The Respondent was required to successfully complete a pre-approved graduate level psychology course in ethics and submit proof of compliance, prior to the end of his probation.

c) The Respondent was required to successfully complete a pre-approved continuing education course in record

keeping and submit proof of compliance, prior to the end of his probation.

d) The Respondent was required to make available to the Board, or its designee, any and all records requested by the Board for review.

e) The Respondent was required to notify the Board, in writing, if he left Iowa to reside or practice outside the state.

f) If the Respondent failed to comply with any of the terms of the Informal Settlement, the Board may initiate action to reinstate the period of suspension stayed or to impose other discipline.

(Testimony of Sharon Cook; State Exhibit I)

4. On March 29, 1996, the Board approved the supervisor selected by the Respondent. The supervisor submitted a written monthly report to the Board on May 16, 1996, which summarized his April meetings with the Respondent. (Testimony of Sharon Cook; State Exhibit J)

5. On May 14, 1996, the Board issued a subpoena for copies of three of the Respondent's case records for its review. The subpoena was served on the Respondent by the Board's investigator on May 16, 1996. The Respondent told the Board's investigator that he had resigned his license to practice psychology in the state of Iowa, effective May 15, 1996, by sending a certified letter to the Board. The Respondent also expressed concern as to why his records were being subpoenaed for review by the Board when they had been reviewed by his supervisor. The Respondent did not provide the records requested by the Board. (Testimony of Sharon Cook; State Exhibit K)

6. The Board received the Respondent's letter resigning his license, effective May 15, 1996. The Respondent stated that he would no longer be practicing psychology in the state of Iowa, would be immediately closing his practice, and permanently leaving the state. The Respondent stated that he did not intend to practice psychology again. However, the Respondent did not return his license to the Board. (Testimony of Sharon Cook; State Exhibit L)

7. On June 13, 1996, the Respondent's supervisor sent the Board a written report. The supervisor stated that he had not met with the Respondent after their April sessions. According to the supervisor, the Respondent notified him during the week of June 13, 1996 that he had forfeited his license to practice psychology, closed his practice, and had left town permanently. The supervisor

further stated that he was under the impression that the Respondent had referred his clients who wished to continue therapy to other persons or organizations. (Testimony of Sharon Cook; State Exhibit J)

8. The Respondent has not completed the required graduate level course in ethics or the continuing education ethics course, as required by the Informal Settlement. The Respondent has not provided the Board with a new address or any additional information concerning his plans to relocate. (Testimony of Sharon Cook)

9. The Statement of Charges and Notice of Hearing was sent by certified mail, return receipt requested, to the Respondent at his last known residential mailing address in Des Moines, Iowa. The return receipt card was signed on November 26, 1996. The Statement of Charges and Notice of Hearing was also mailed to the Respondent's business address by certified mail, but was returned to the Board after two notices. (Testimony of Sharon Cook, State Exhibit G)

CONCLUSIONS OF LAW

1. 645 IAC 240.206 provides that the department shall prepare the notice of hearing and transmit it to the respondent by certified mail, return receipt requested, at least ten days before the date of the hearing.

The Statement of Charges and Notice of Hearing were sent to the Respondent by certified mail, return receipt requested, more than ten days prior to the hearing. The Respondent was properly served with the statement of charges and notice of hearing, in accordance with 645 IAC 240.206.

Iowa Code section 17A.12(3) (1995) provides that if a party fails to appear in a contested case proceeding after proper service of notice, the presiding officer may, if no adjournment is granted, proceed with the hearing and make a decision in the absence of the party.

The Respondent failed to appear for the hearing after proper service of notice. He is bound by this decision of the Board.

2. Iowa Code section 272C.3(1995) provides in relevant part:

272C.3 Authority of licensing boards.

...

2. Each licensing board may impose one or more of the following as licensee discipline:

a. Revoke a license, or suspend a license either until further order of the board or for a specified period,

...or upon failure of the licensee to comply with a decision of the board imposing licensee discipline;...

3. The preponderance of the evidence established that the Respondent failed to comply with an order of the Board imposing licensee discipline when he failed to comply with the terms of probation imposed upon him by his Informal Settlement with the Board. Under the terms of the Informal Settlement, the Respondent was required to complete a one year probation and comply with all of the terms of his probation, including weekly meetings with his supervisor, successfully completing courses in ethics and recordkeeping, and providing records to the Board for their review. The Respondent stopped meeting with his supervisor after the April 30, 1996 meeting. He has not completed the required courses in record keeping and ethics, nor did he provide the Board with records, following service of a Board subpoena. The Respondent attempted to surrender his license, effective May 15, 1996, but did not return his license to the Board. The Respondent has violated Iowa Code section 272C.3(2)(a)(1995).

ORDER

IT IS THEREFORE ORDERED, that the license to practice psychology in the state of Iowa, license no. 53, issued to Todd Hines, is hereby REVOKED.

IT IS FURTHER ORDERED, that the Respondent shall immediately return his license to the Board office.

IT IS FURTHER ORDERED, that the Respondent shall pay a disciplinary hearing fee of \$75.00 within thirty (30) days of the issuance of this decision. 645 IAC 173.19(2)(1995).

Dated this 12 day of February, 1997.



Robert Jones, Ph.D.
Chairperson
Iowa Board of Psychology Examiners

cc: Jean Davis
Assistant Attorney General

Any appeal to the district court from disciplinary action of the board shall be taken within 30 days from the issuance of the decision by the board. It is not necessary to request a rehearing before the board to appeal to the district court. 645 IAC 240.209.

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF:

TODD HINES, Ph.D.,

RESPONDENT.

NO. 92-5

STATEMENT OF CHARGES
AND NOTICE OF HEARING

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code sections 17A.11 - 17A.18 (1995); and 272C.3 and 272C.6 and upon a finding of probable cause by the Iowa Board of Psychology Examiners (Board), you are notified that this Statement of Charges is filed against you and a disciplinary hearing is scheduled for the 3rd day of January, 1997, at 9:00 a.m. at the Hotel Ft. Des Moines, Room 318, 1000 Walnut Street

Des Moines, Iowa. At that time, you may appear and defend. If you fail to appear, the hearing may proceed and a decision will be rendered in your absence. You have the right to be represented by legal counsel at your expense, present evidence on your behalf, and cross-examine witnesses. The hearing will be presided over by the Board, which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

The hearing will determine whether discipline should be taken against your license based upon the following allegations:

1. Respondent was originally licensed to practice as a psychologist in the State of Iowa on April 19, 1996, and holds license number 53.

2. Respondent's license lapsed June 30, 1996.

3. Respondent's current address as reported to the Board

is: 4315 California Drive, Des Moines, Iowa 50312

4. That in 1992 the Board initiated licensee discipline action against the respondent in a complaint numbered 92-5. That the licensee disciplinary action initiated by the Board resulted in an informal settlement agreement executed on January 31, 1996.

5. Respondent was required to comply with the terms and conditions of the informal settlement agreement and was required to undergo a period of probation as a condition of licensure.

6. Respondent has failed to comply with the terms of the informal settlement agreement.

7. Respondent has engaged in conduct providing the Board with jurisdiction to take disciplinary action pursuant to Iowa Code chapter 272C.3.

You are hereby notified that the office of the Iowa Attorney General is responsible for the representation of the public interest in these proceedings. Copies of all filings should be served on counsel at the following address:

Jean M. Davis
Assistant Attorney General
Hoover State Office Building
Des Moines, IA 50319

Dated this 20th day of November, 1996.

Acting on behalf of the
IOWA BOARD OF PSYCHOLOGY
EXAMINERS

Sharon Cook

Sharon Cook, Board Administrator

Copies to:

Jean M. Davis
Assistant Attorney General
Hoover Building
L O C A L

Department of Inspections and Appeals
Fair Hearings Division
Lucas Building
L O C A L

May 15, 1996

Iowa Board of Psychology Examiners
Robert D. Jones, Ph.D., Chairperson
Lucas State Office Building
321 East Twelfth Street
Des Moines, IA 50319-0075

This is to advise you that I will no longer be practicing psychology in the State of Iowa. I am immediately closing my practice and I will soon be permanently leaving the State. It is my intention to never again practice psychology in this locale or in any other.

Therefore, I am resigning my license to practice psychology effective immediately as indicated by the date of this letter.

A handwritten signature in black ink, appearing to read "Todd F. Hines", with a large, stylized initial "T" and "H".

Todd F. Hines

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF THE LICENSE)
TO PRACTICE AS A PSYCHOLOGIST)
)
TODD HINES, Ph.D)
LICENSE NO. 53,)
Respondent.)

DIA NO. 92DPHPS
NO. 92-5

INFORMAL SETTLEMENT

The Iowa Board of Psychology Examiners and Dr. Todd Hines, pursuant to Iowa Code sections 17A.10 and 272C.3(4), enter into the following Informal Settlement of the contested case currently on file. The Board and Dr. Hines agree as follows:

1. The license of Dr. Hines will be suspended for a period of six (6) months with all but sixty (60) days stayed.

a. The suspension will be in effect no later than February 1, 1996. The suspension may go into effect prior to that date upon written notice to the Board by Dr. Hines no less than ten (10) days before the effective date of the suspension.

b. During the period of suspension, Dr. Hines will not engage in the practice of psychology.

2. Upon completion of the sixty day suspension, Dr. Hines' license will be reinstated on probation for a period of one (1) year with the following terms:

a. Dr. Hines' practice will be monitored by a supervisor approved by the Board.

(i) The supervisor must be a licensed psychologist approved by the Board. Dr. Hines shall submit names of potential supervisors for the Board's approval.

(ii) The supervisor must meet with Dr. Hines on a weekly basis for the first three (3) months of the probation to discuss all current cases of female clients including but not limited to evaluations, treatment plans and interventions for those clients. At the discretion of the supervisor, Dr. Hines shall make any necessary records available for review. At the end of the first three (3) months, the Board together with the supervisor will determine how often such meetings must be held.

(iii) The supervisor shall report to the Board his/her opinions and perceptions of Dr. Hines practice, as requested by the Board. This report shall be made monthly in writing to the Board. Prior to the first report, the Board will inform the supervisor what information must be included in the report.

(iv) The supervisor must be approved by the Board and must agree to comply with these requirements before Dr. Hines can begin to practice psychology after the suspension.

(v) Based on information received by the supervisor, the Board, in its discretion, may extend the period of probation for an additional year.

b. Dr. Hines will successfully complete a graduate level psychology course in ethics. The course must be pre-approved by the Board. This course must be completed before the end of the probation period. Proof of compliance must be submitted to the Board.

c. Dr. Hines will complete a continuing education course in record keeping. This course must be pre-approved by the Board and must be completed before the end of the probation period. Proof of compliance must be submitted to the Board.

d. Dr. Hines will make available to the Board, or its designee, any and all records requested by the Board for review.

e. Dr. Hines shall meet with the Board before the end of the period of probation or at the request of the Board.

3. Any costs incurred in complying with this Settlement are the responsibility of Dr. Hines.

4. In the event Dr. Hines leaves Iowa to reside or to practice outside the state, he shall notify the Board in writing of the dates of departure and return. Periods of residence or practice outside Iowa will not apply to the duration of this Informal Settlement.

5. In the event Dr. Hines violates or fails to comply with any of the terms or conditions of this Informal Settlement, the Board may initiate action to reinstate the period of suspension stayed or to impose other discipline as authorized under Iowa law.

6. Upon full compliance with the terms and conditions of this Informal Settlement and upon expiration of the period of probation, Dr. Hines' license shall be restored to its full privileges free and clear of the terms of probation.

7. Pursuant to Iowa Code section 272C.3(4), this Informal Settlement is a public document.

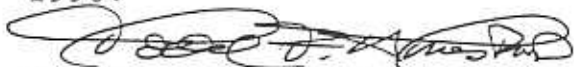
8. This Informal Settlement is subject to the approval of the Board. If the Board fails to approve this Informal Settlement, it shall be of no force or effect to either party.

9. Dr. Hines enters into this Informal Settlement voluntarily. His entering into this Informal Settlement is not an admission of the charges or allegations found in the Statement of

Charges.

10. The Board's approval of this Informal Settlement constitutes a FINAL ORDER of the Board.

This Informal Settlement is voluntarily submitted on _____, 1996.



Todd Hines, Ph.D.

This Informal Settlement is approved by the Board on 1/31/96, 1996.



Robert P. Jones, Ph.D.

Chairperson

Iowa Board of Psychology Examiners

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF
THE LICENSE TO PRACTICE AS
A PSYCHOLOGIST OF:

TODD HINES, Ph.D.
Lic. No. 53,
Respondent.

DIA NO. 92DPHPS-_____

NOTICE OF HEARING AND
STATEMENT OF CHARGES

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code § 17A.12 and 645 Iowa Administrative Code 240.206, and upon a probable cause determination by the Iowa Board of Psychology Examiners (the Board), you are hereby notified that a Statement of Charges has been filed and that a disciplinary hearing regarding those charges has been scheduled to commence at 9:00 a.m., February 12, 1993, in the First Floor Hearing Room of the Lucas State Office Building, Des Moines, Iowa. At that time you may appear and defend. If you fail to appear and defend, Iowa Code § 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code §§ 258A.3 and 258A.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on April 19, 1976, and holds license number 53.

2. Respondent's license is current until June 30, 1994.

3. Respondent's current address as reported to the Board is 1601 22nd Street, Ste. 210, West Des Moines, Iowa 50265.

4. Respondent began treatment of a patient, Jane Doe, on or about February 28, 1989. Jane Doe remained a client until at least August 26, 1991. During the period of Jane Doe's treatment, Respondent entered into and engaged in a personal and sexual relationship with Jane Doe, which relationship has extended through at least July, 1992. Respondent is therefore in violation of Iowa Code § 709.15 (1991 Supplement).

5. After cessation of a formal therapist/patient relationship, Respondent actively interfered with therapy Jane Doe was receiving, and engaged in conduct detrimental to Jane Doe's previously and subsequently diagnosed condition.

6. Respondent has neglected to maintain adequate and pertinent records on Jane Doe, and has therefore failed to comply with the standards of practice for providers of psychological services.

7. By virtue of the allegations of paragraphs 4, 5, and 6, Respondent has engaged in practices providing the Board with jurisdiction to take disciplinary action pursuant to Iowa Code §§ 147.55(3) and 258A.10(3). Further jurisdiction is provided by

Board rule 645 Iowa Admin. Code § 240.212, including subrules (1)(c); (2); (6); (7)(f); (14)(a)(5); (14)(b)(5); (14)(c)(3); and (14)(f)(1).

* * *

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 19th day of October, 1992.

Carl Davis, Ph.D. by SKD
Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners

May 15, 1996

Iowa Board of Psychology Examiners
Robert D. Jones, Ph.D., Chairperson
Lucas State Office Building
321 East Twelfth Street
Des Moines, IA 50319-0075

This is to advise you that I will no longer be practicing psychology in the State of Iowa. I am immediately closing my practice and I will soon be permanently leaving the State. It is my intention to never again practice psychology in this locale or in any other.

Therefore, I am resigning my license to practice psychology effective immediately as indicated by the date of this letter.

A handwritten signature in black ink, appearing to read "Todd F. Hines", with a large, stylized loop at the beginning.

Todd F. Hines

BEFORE THE IOWA BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF THE LICENSE)
TO PRACTICE AS A PSYCHOLOGIST)
)
TODD HINES, Ph.D)
LICENSE NO. 53,)
Respondent.)

DIA NO. 92DPHPS
NO. 92-5

INFORMAL SETTLEMENT

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1. The license of Dr. Hines will be suspended for a period of six (6) months with all but sixty (60) days stayed.

a. The suspension will be in effect no later than February 1, 1996. The suspension may go into effect prior to that date upon written notice to the Board by Dr. Hines no less than ten (10) days before the effective date of the suspension.

b. During the period of suspension, Dr. Hines will not engage in the practice of psychology.

2. Upon completion of the sixty day suspension, Dr. Hines' license will be reinstated on probation for a period of one (1) year with the following terms:

a. Dr. Hines' practice will be monitored by a supervisor approved by the Board.

(i) The supervisor must be a licensed psychologist approved by the Board. Dr. Hines shall submit names of potential supervisors for the Board's approval.

(ii) The supervisor must meet with Dr. Hines on a weekly basis for the first three (3) months of the probation to discuss all current cases of female clients including but not limited to evaluations, treatment plans and interventions for those clients. At the discretion of the supervisor, Dr. Hines shall make any necessary records available for review. At the end of the first three (3) months, the Board together with the supervisor will determine how often such meetings must be held.

(iii) The supervisor shall report to the Board his/her opinions and perceptions of Dr. Hines practice, as requested by the Board. This report shall be made monthly in writing to the Board. Prior to the first report, the Board will inform the supervisor what information must be included in the report.

(iv) The supervisor must be approved by the Board and must agree to comply with these requirements before Dr. Hines can begin to practice psychology after the suspension.

(v) Based on information received by the supervisor, the Board, in its discretion, may extend the period of probation for an additional year.

b. Dr. Hines will successfully complete a graduate level psychology course in ethics. The course must be pre-approved by the Board. This course must be completed before the end of the probation period. Proof of compliance must be submitted to the Board.

c. Dr. Hines will complete a continuing education course in record keeping. This course must be pre-approved by the Board and must be completed before the end of the probation period. Proof of compliance must be submitted to the Board.

d. Dr. Hines will make available to the Board, or its designee, any and all records requested by the Board for review.

e. Dr. Hines shall meet with the Board before the end of the period of probation or at the request of the Board.

3. Any costs incurred in complying with this Settlement are the responsibility of Dr. Hines.

4. In the event Dr. Hines leaves Iowa to reside or to practice outside the state, he shall notify the Board in writing of the dates of departure and return. Periods of residence or practice outside Iowa will not apply to the duration of this Informal Settlement.

5. In the event Dr. Hines violates or fails to comply with any of the terms or conditions of this Informal Settlement, the Board may initiate action to reinstate the period of suspension stayed or to impose other discipline as authorized under Iowa law.

6. Upon full compliance with the terms and conditions of this Informal Settlement and upon expiration of the period of probation, Dr. Hines' license shall be restored to its full privileges free and clear of the terms of probation.

7. Pursuant to Iowa Code section 272C.3(4), this Informal Settlement is a public document.

8. This Informal Settlement is subject to the approval of the Board. If the Board fails to approve this Informal Settlement, it shall be of no force or effect to either party.

9. Dr. Hines enters into this Informal Settlement voluntarily. His entering into this Informal Settlement is not an admission of the charges or allegations found in the Statement of

Charges.

10. The Board's approval of this Informal Settlement constitutes a FINAL ORDER of the Board.

This Informal Settlement is voluntarily submitted on _____, 1996.



Todd Hines, Ph.D.

This Informal Settlement is approved by the Board on 1/31/96, 1996.



Robert D. Jones, Ph.D.

Chairperson

Iowa Board of Psychology Examiners

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF	)	DIA NO. 92DPHPS-____
THE LICENSE TO PRACTICE AS	)	
A PSYCHOLOGIST OF:	)	NOTICE OF HEARING AND
	)	STATEMENT OF CHARGES
TODD HINES, Ph.D.	)	
Lic. No. 53,	)	
Respondent.	)	

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code § 17A.12 and 645 Iowa Administrative Code 240.206, and upon a probable cause determination by the Iowa Board of Psychology Examiners (the Board), you are hereby notified that a Statement of Charges has been filed and that a disciplinary hearing regarding those charges has been scheduled to commence at 9:00 a.m., February 12, 1993, in the First Floor Hearing Room of the Lucas State Office Building, Des Moines, Iowa. At that time you may appear and defend. If you fail to appear and defend, Iowa Code § 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code §§ 258A.3 and 258A.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on April 19, 1976, and holds license number 53.

2. Respondent's license is current until June 30, 1994.

3. Respondent's current address as reported to the Board is 1601 22nd Street, Ste. 210, West Des Moines, Iowa 50265.

4. Respondent began treatment of a patient, Jane Doe, on or about February 28, 1989. Jane Doe remained a client until at least August 26, 1991. During the period of Jane Doe's treatment, Respondent entered into and engaged in a personal and sexual relationship with Jane Doe, which relationship has extended through at least July, 1992. Respondent is therefore in violation of Iowa Code § 709.15 (1991 Supplement).

5. After cessation of a formal therapist/patient relationship, Respondent actively interfered with therapy Jane Doe was receiving, and engaged in conduct detrimental to Jane Doe's previously and subsequently diagnosed condition.

6. Respondent has neglected to maintain adequate and pertinent records on Jane Doe, and has therefore failed to comply with the standards of practice for providers of psychological services.

7. By virtue of the allegations of paragraphs 4, 5, and 6, Respondent has engaged in practices providing the Board with jurisdiction to take disciplinary action pursuant to Iowa Code §§ 147.55(3) and 258A.10(3). Further jurisdiction is provided by

Board rule 645 Iowa Admin. Code § 240.212, including subrules (1)(c); (2); (6); (7)(f); (14)(a)(5); (14)(b)(5); (14)(c)(3); and (14)(f)(1).

* * *

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 19th day of October, 1992.

Carl Davis Ph.D. by SKO
Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners